

COURT OF COMMON PLEAS OF PHILADELPHIA COUNTY

DOCKET



Docket Number: CP-51-CR-0000481-2024

CRIMINAL DOCKET

Court Case

Commonwealth of Pennsylvania

v.

Marcus Mitchell

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CASE INFORMATION

Cross Court Docket Nos: 1034 EDA 2025

Judge Assigned: Kyriakakis, Anthony

Date Filed: 01/24/2024

Initiation Date: 01/24/2024

OTN: U 294703-3

LOTN:

Originating Docket No: MC-51-CR-0000412-2024

Initial Issuing Authority: The Honorable Vincent W. Furlong

Final Issuing Authority:

Arresting Agency: Philadelphia Pd

Arresting Officer: Ditro, Thomas

Complaint/Citation No.: 2325078515-0000412

Incident Number: 2325078515

County: Philadelphia

Township: Philadelphia City

Case Local Number Type(s)

Case Local Number(s)

Originating Docket Number

MC-51-CR-0000412-2024

District Control Number

2325078515

Originating Document Number

2325078515-0000412

STATUS INFORMATION

<u>Case Status:</u>	<u>Status Date</u>	<u>Processing Status</u>	<u>Arrest Date:</u>
Closed	02/10/2026	Appeal Decided	01/06/2024
	04/21/2025	Awaiting Appellate Court Decision	
	02/18/2025	Sentenced/Penalty Imposed	
	02/18/2025	Awaiting Sentencing	
	01/30/2025	Awaiting Trial Readiness Conference	
	11/08/2024	Awaiting Trial Readiness Conference	
	10/18/2024	Awaiting Scheduling Conference	
	09/27/2024	Awaiting Trial	
	07/15/2024	Awaiting Trial Readiness Conference	
	02/06/2024	Awaiting Scheduling Conference	
	01/24/2024	Awaiting Filing of Information	

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CALENDAR EVENTS

<u>Case Calendar</u>	<u>Schedule</u>	<u>Start</u>	<u>Room</u>	<u>Judge Name</u>	<u>Schedule</u>
<u>Event Type</u>	<u>Start Date</u>	<u>Time</u>			<u>Status</u>
Formal Arraignment	02/06/2024	11:00 am	1104	Trial Commissioner Gerald Winterstein	Scheduled
Scheduling Conference	03/07/2024	9:00 am	905	Judge Zachary C. Shaffer	Scheduled
Status	04/18/2024	9:00 am	905	Judge Zachary C. Shaffer	Continued
Status	06/20/2024	9:00 am	905	Judge Zachary C. Shaffer	Continued
Status	07/15/2024	9:00 am	1008	Judge Anthony Kyriakakis	Scheduled
Trial Readiness Conference	09/27/2024	9:00 am	1008	Judge Anthony Kyriakakis	Scheduled
Waiver Trial	09/30/2024	9:00 am	1008	Judge Anthony Kyriakakis	Continued
Waiver Trial	10/04/2024	9:00 am	1008	Judge Anthony Kyriakakis	Scheduled
Status	10/18/2024	9:00 am	1008	Judge Anthony Kyriakakis	Scheduled
Scheduling Conference	11/04/2024	9:00 am	1008	Judge Anthony Kyriakakis	Continued
Scheduling Conference	11/08/2024	9:00 am	1008	Judge Anthony Kyriakakis	Cancelled
Bail Hearing	11/08/2024	9:00 am	1008	Judge Anthony Kyriakakis	Scheduled
Motions Hearing	01/31/2025	9:00 am	1008	Judge Anthony Kyriakakis	Continued
Motions Hearing	02/18/2025	9:00 am	502	Judge Anthony Kyriakakis	Scheduled
Trial Readiness Conference	02/27/2025	9:00 am	502	Judge Anthony Kyriakakis	Cancelled
Trial Readiness Conference	02/27/2025	9:00 am	1008	Judge Anthony Kyriakakis	Moved
Jury Trial	03/11/2025	9:00 am	502	Judge Anthony Kyriakakis	Cancelled
Jury Trial	03/11/2025	9:00 am	1008	Judge Anthony Kyriakakis	Moved
Motions Hearing	03/17/2025	9:00 am	502	Judge Anthony Kyriakakis	Scheduled
Video-Motion Hearing	04/21/2025	9:00 am	502	Judge Anthony Kyriakakis	Scheduled

DEFENDANT INFORMATION

Date Of Birth: 01/29/1991 City/State/Zip: Philadelphia, PA 19126

CASE PARTICIPANTS

<u>Participant Type</u>	<u>Name</u>
Defendant	Mitchell, Marcus

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BAIL INFORMATION

Mitchell, Marcus

Nebbia Status: None

<u>Bail Action</u>	<u>Date</u>	<u>Bail Type</u>	<u>Originating Court</u>	<u>Percentage</u>	<u>Amount</u>
Set	01/24/2024	Monetary	Common Pleas	10.00%	\$1,000,000.00

CHARGES

<u>Seq.</u>	<u>Orig Seq.</u>	<u>Grade</u>	<u>Statute</u>	<u>Statute Description</u>	<u>Offense Dt.</u>	<u>OTN</u>
1	1	F1	18 § 2702 §§ A1	Aggravated Assault - Attempts to cause SBI or causes injury with extreme indifference	12/31/2023	U 294703-3

DISPOSITION SENTENCING/PENALTIES

Disposition

<u>Case Event</u>	<u>Disposition Date</u>	<u>Final Disposition</u>
<u>Sequence/Description</u>	<u>Offense Disposition</u>	<u>Grade</u> <u>Section</u>
<u>Sentencing Judge</u>	<u>Sentence Date</u>	<u>Credit For Time Served</u>
<u>Sentence/Diversion Program Type</u>	<u>Incarceration/Diversionary Period</u>	<u>Start Date</u>
<u>Sentence Conditions</u>		

Lower Court Proceeding (generic)

Preliminary Hearing	01/23/2024	Not Final
1 / Aggravated Assault - Attempts to cause SBI or causes injury with extreme indifference	Held for Court	F1 18 § 2702 §§ A1

Proceed to Court Defendant Was Not Present

Information Filed	02/01/2024	Not Final
1 / Aggravated Assault - Attempts to cause SBI or causes injury with extreme indifference	Proceed to Court	F1 18 § 2702 §§ A1

Guilty Plea - Negotiated

Motions Hearing	02/18/2025	Final Disposition
1 / Aggravated Assault - Attempts to cause SBI or causes injury with extreme indifference	Guilty Plea - Negotiated	F1 18 § 2702 §§ A1
Kyriakakis, Anthony	02/18/2025	
Confinement	Min of 2.00 Years 6.00 Months Max of 6.00 Years Other	02/18/2025
Credit to be calculated by the Phila. Prison System		
Commonwealth waives ineligibility for RRRRI & Boot Camp.		
Probation	Max of 2.00 Years 2 years	

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DISPOSITION SENTENCING/PENALTIES

Disposition

Case Event

Sequence/Description

Sentencing Judge

Sentence/Diversion Program Type

Sentence Conditions

Disposition Date

Offense Disposition

Sentence Date

Incarceration/Diversionary Period

Final Disposition

Grade Section

Credit For Time Served

Start Date

Defendant to obey all criminal laws and city ordinances.

Defendant must report as directed to the court and the probation officer and permit the probation officer to visit the defendant's home.

Defendant must report to their probation officer of any new arrest within 72 hours.

Defendant must notify their probation officer of any change in address or employment within 15 days.

Defendant may not possess a firearm or other dangerous weapon unless granted written permission from the Court.

Defendant to seek and maintain employment.

Defendant to participate in anger management counseling.

Defendant to have no contact with and stay away from the victim(s) and family members of the victim(s).

LINKED SENTENCES:

Link 1

CP-51-CR-0000481-2024 - Seq. No. 1 (18 § 2702 §§ A1) - Probation is Consecutive to

CP-51-CR-0000481-2024 - Seq. No. 1 (18 § 2702 §§ A1) - Confinement

COMMONWEALTH INFORMATION

Name: Philadelphia County District Attorney's
Office
District Attorney

Supreme Court No:

Phone Number(s):

215-686-8000 (Phone)

Address:

3 South Penn Square
Philadelphia, PA 19107

ATTORNEY INFORMATION

Name: Scott Philip Sigman
Court Appointed

Supreme Court No: 088151

Rep. Status: Active

Phone Number(s):

215-715-5720 (Phone)

215-330-5471 (Mobile)

Address:

2016 Spruce St
Philadelphia, PA 19103

Representing: Mitchell, Marcus

ENTRIES

Sequence Number

CP Filed Date

Document Date

Filed By

1

01/24/2024

Court of Common Pleas -
Philadelphia County

Held for Court

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3	01/24/2024		Furlong, Vincent W.
Bail Set - Mitchell, Marcus			
1	02/01/2024		Krasner, Larry
Information Filed			
1	03/07/2024		Shaffer, Zachary C.
Defense Request For Continuance Newly Retained or Appointed			
4	03/07/2024		Court of Common Pleas - Philadelphia County
Hearing Notice			
1	03/08/2024		Court of Common Pleas - Philadelphia County
Short Certificate Court Appointments 03/08/2024			
1	03/11/2024		Coleman, Joseph L.
Entry of Appearance			
2	03/11/2024		Court of Common Pleas - Philadelphia County
Appointment Notice			
4	04/18/2024		Court of Common Pleas - Philadelphia County
Hearing Notice			
5	04/18/2024		Shaffer, Zachary C.
Defense Request For Continuance Newly Retained or Appointed			
6	04/18/2024		Court of Common Pleas - Philadelphia County
Short Certificate Court Appointments 04/18/2024			
1	04/22/2024		Yee, Adam Sequoyah
Entry of Appearance			

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2	06/20/2024		Shaffer, Zachary C.
Pre-Trial Conference Held			
6	06/20/2024		Court of Common Pleas - Philadelphia County
Hearing Notice			
1	07/15/2024		Kyriakakis, Anthony
Scheduling Conference Held			
1	08/28/2024		Mitchell, Marcus
Motion for Modification of Bail			
1	09/27/2024		Kyriakakis, Anthony
Trial Date to Remain			
1	09/30/2024		Kyriakakis, Anthony
Defense Request For Continuance For Possible Plea			
1	10/04/2024		Kyriakakis, Anthony
Order Granting Motion for Continuance			
3	10/04/2024		Court Appointments
Short Certificate			
1	10/18/2024		Kyriakakis, Anthony
Status Listing			
1	10/22/2024		Defender Association of Philadelphia
Omnibus Pre-Trial Motion			
1	11/04/2024		Kyriakakis, Anthony
Defense Request For Continuance Discovery Just Provided			
7	11/04/2024		Court of Common Pleas - Philadelphia County
Hearing Notice			

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8	11/04/2024		Defender Association of Philadelphia
Motion for Modification of Bail			
1	11/08/2024		Kyriakakis, Anthony
Scheduling Conference Held			
6	11/08/2024		CP Attorney Attachments
Short Certificate			
CP Attorney Attachments			
11/08/2024			
7	11/08/2024		Kyriakakis, Anthony
Order Denying Motion for Modification of Bail			
8	11/08/2024		Kyriakakis, Anthony
Jury Trial Scheduling Order			
1	11/12/2024		Court of Common Pleas - Philadelphia County
Counsel Attached for Trial			
1	01/30/2025		Defender Association of Philadelphia
Omnibus Pre-Trial Motion			
4	01/30/2025		Court of Common Pleas - Philadelphia County
Hearing Notice			
7	01/30/2025		Court of Common Pleas - Philadelphia County
Hearing Notice			
1	01/31/2025		Kyriakakis, Anthony
Joint Request For Continuance			
1	02/18/2025		Defender Association of Philadelphia
Defense Exhibit			
2	02/18/2025		Kyriakakis, Anthony
Guilty Plea - Negotiated			

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3	02/18/2025		Kyriakakis, Anthony
Order - Sentence/Penalty Imposed			
7	02/18/2025		Court of Common Pleas - Philadelphia County
Penalty Assessed			
8	02/18/2025		Philadelphia County Sheriff's Office Fines and Costs APPD Parole Probation Intake
Itemized Account of Fines, Costs, Fees, and Restitution			
APPD Parole Probation Intake			
02/18/2025			
Fines and Costs			
02/18/2025			
Philadelphia Department of Prisons			
02/18/2025			
9	02/18/2025		Philadelphia County Sheriff's Office Philadelphia Department of Prisons
Court Commitment State or County Correctional Institution			
Philadelphia County Sheriff's Office			
02/18/2025			
Philadelphia Department of Prisons			
02/18/2025			
1	02/20/2025		Defender Association of Philadelphia
Motion to Withdraw Plea of Guilty			
1	02/27/2025		Philadelphia County District Attorney's Office
Answer/Response			
2	03/17/2025		Kyriakakis, Anthony
Status Listing			
2	03/17/2025		Court Appointments
Short Certificate			
Court Appointments			
03/17/2025			

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1	03/18/2025		Sigman, Scott Philip
Entry of Appearance			
2	04/17/2025		Court of Common Pleas - Philadelphia County
Hearing Notice			
1	04/21/2025		Sigman, Scott Philip
Statement of Matters Complained on Appeal			
2	04/21/2025		Unknown Filer
Order Denying Motion to Withdraw Guilty Plea			
3	04/21/2025		Kyriakakis, Anthony
Order Denying Motion to Withdraw Guilty Plea			
4	04/21/2025		Unknown Filer
Order Denying Motion to Withdraw Guilty Plea			
5	04/21/2025		Sigman, Scott Philip
Notice of Appeal to the Superior Court			
1	04/22/2025		Kyriakakis, Anthony
Order Issued Pursant to Pa.R.A.P. 1925(b)			
1	04/25/2025		Superior Court of Pennsylvania - Eastern District
Docketing Statement from Superior Court			
1	04/29/2025		Philadelphia County Office of Judicial Records
Entry of Civil Judgment			
1	06/18/2025		Kyriakakis, Anthony
Opinion			
2	06/18/2025		Court of Common Pleas - Philadelphia County
Appeal Docket Entries and Served			

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3	06/18/2025		Court of Common Pleas - Philadelphia County
Certificate and Transmittal of Record to Appellate Court			
1	02/10/2026		Superior Court of Pennsylvania - Eastern District
Superior Court Decision			
2	02/10/2026		Superior Court of Pennsylvania - Eastern District
Superior Court Opinion			
3	02/10/2026		Superior Court of Pennsylvania - Eastern District
Judgement of Sentence Affirmed			
1	02/18/2026		Court Appointment QAU
Order Granting Motion for Counsel Fees			

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CASE FINANCIAL INFORMATION

Last Payment Date: 03/30/2026

Total of Last Payment: -\$36.50

Mitchell, Marcus Defendant	<u>Assessment</u>	<u>Payments</u>	<u>Adjustments</u>	<u>Non Monetary Payments</u>	<u>Balance</u>
Costs/Fees					
ATJ	\$6.00	(\$6.00)	\$0.00	\$0.00	\$0.00
Booking Center Fee (Philadelphia)	\$175.00	(\$175.00)	\$0.00	\$0.00	\$0.00
CJES	\$2.50	(\$2.50)	\$0.00	\$0.00	\$0.00
CQS Fee Felony (Philadelphia)	\$100.00	(\$100.00)	\$0.00	\$0.00	\$0.00
Commonwealth Cost - HB627 (Act 167 of 1992)	\$25.90	(\$5.15)	\$0.00	\$0.00	\$20.75
Costs of Prosecution - CJEA	\$50.00	(\$9.93)	\$0.00	\$0.00	\$40.07
County Court Cost (Act 204 of 1976)	\$37.80	(\$7.51)	\$0.00	\$0.00	\$30.29
Crime Victim Services and Compensation (Act 77 of 1992)	\$60.00	(\$60.00)	\$0.00	\$0.00	\$0.00
DNA Detection Fund (Act 185-2004)	\$250.00	(\$49.60)	\$0.00	\$0.00	\$200.40
Domestic Violence Compensation (Act 44 of 1988)	\$10.00	(\$2.00)	\$0.00	\$0.00	\$8.00
Firearm Education and Training Fund	\$5.00	(\$1.00)	\$0.00	\$0.00	\$4.00
JCPS	\$21.25	(\$21.25)	\$0.00	\$0.00	\$0.00
Judicial Computer Project	\$8.00	(\$8.00)	\$0.00	\$0.00	\$0.00
OAG - JCP	\$2.50	(\$2.50)	\$0.00	\$0.00	\$0.00
State Court Costs (Act 204 of 1976)	\$17.30	(\$3.34)	\$0.00	\$0.00	\$13.96
OSP (Philadelphia) (Act 77 of 2022)	\$25.00	(\$25.00)	\$0.00	\$0.00	\$0.00
Civil Judgment/Lien (Philadelphia)	\$100.69	\$0.00	\$0.00	\$0.00	\$100.69
Costs/Fees Totals:	\$896.94	(\$478.78)	\$0.00	\$0.00	\$418.16
Grand Totals:	\$896.94	(\$478.78)	\$0.00	\$0.00	\$418.16

** - Indicates assessment is subrogated